

Court No. - 21

Case :- WRIT - C No. - 5535 of 2018

Petitioner :- Raghuraj Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- R.K. Mishra

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari, J.

Hon'ble Ajay Bhanot, J.

Learned counsel for the petitioner states that the petitioner has no electricity connection of Tube-well, though the electricity connection running a Tube-well is in the name of respondent No.6 but for no rhyme and reason the recovery notice has been issued against him for arrears of electricity charges.

Sri Chandan Agarwal, learned counsel, who has accepted notice on behalf of respondents No.4 and 5, prays for and is allowed two weeks' time to seek instructions in the matter.

Put up as fresh on 27.2.2018.

Till then, no coercive action shall be taken against the petitioner in pursuance to the impugned recovery.

Order Date :- 12.2.2018

Ashish Tripathi

Court No. - 4

Case :- WRIT - C No. - 5535 of 2018

Petitioner :- Raghuraj Singh

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- R.K. Mishra

Counsel for Respondent :- C.S.C.,Chandan Agarwal

Hon'ble Bala Krishna Narayana,J.

Hon'ble Irshad Ali,J.

Learned counsel for the petitioner is permitted to implead Consumer Grievance Redressal Forum, Meerut as respondent no. 7.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent nos. 1, 2 and 3 and Sri Chandan Agarwal, learned counsel for the respondent nos. 4 and 5.

This writ petition has been filed by the petitioner with a prayer to issue a writ, order or direction in the nature of certiorari quashing the impugned recovery certificate dated 12.9.2017 issued by the Executive Engineer/respondent no. 5, as well as the impugned Recovery Citation dated 15.9.2017 issued by Tehsildar/respondent no. 3 against the petitioner (Annexure Nos. 1 and 2 to this writ petition).

It has been submitted by the learned counsel for the petitioner that petitioner is neither owner of the tube-well nor it has been used by him at any point of time yet the respondent no. 4 has illegally issued the recovery certificate against the petitioner for recovery of Rs.84,686/- to the respondent no. 2, who has entrusted the recovery to the respondent no. 3, who on his part has issued recovery citation calling upon the petitioner to deposit the amount mentioned in the citation. He next submitted that the electricity connection of the tube-well stands in the name of his uncle, Babu Lal Singh, who is also the owner of the tube-well and the respondent nos. 4 and 5 without verifying the actual facts initiated proceedings against the petitioner for recovery of electricity dues payable by his uncle.

Sri Chandan Agarwal, learned counsel appearing for the respondent nos. 4 and 5 on the basis of the instructions received by him has submitted that although the power connection is in the name of Babu Lal Singh, petitioner's uncle but under a family settlement his uncle has transferred the tube-well connection in favour of the petitioner. He further submitted that for redressal of his grievance the petitioner can approach before

Consumer Grievance Redressal Forum under Clause 7.10 of the Electricity Supply Code, 2005, as the issues of fact cannot be decided in the writ proceeding.

In rejoinder learned counsel for the petitioner denied that any such family settlement exists or the power connection of the tube-well was transferred by the petitioner's uncle, Babu Lal Singh in favour of the petitioner.

Having heard learned counsel for the parties and perused the record, we dispose of the present writ petition with the following directions:

(i) The petitioner shall file representation/complaint along with certified copy of this order before the Consumer Grievance Redressal Forum, Meerut within a period of three weeks from today raising all the grounds which has been taken by him in this writ petition.

(ii) In case any such representation is made, the Consumer Grievance Redressal Forum, Meerut, respondent no. 7 shall decide the same after giving full opportunity of hearing to the petitioner as well as respondent no. 4, in accordance with law within a period of four weeks from the date of filing of the representation by the petitioner.

(iii) For the period of three months from today or till the representation of the petitioner is decided by the Consumer Grievance Redressal Forum, Meerut, whichever is earlier, recovery proceedings against the petitioner pursuant to the impugned citation shall remain stayed.

Order Date :- 13.3.2018

A. Pt. Singh